IN THE BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
KING'S BENCH DIVISION
CIRCUIT COMMERCIAL COURT (KBD)

Claim No. **CC-2025-LON-000389**

B E T W E E N :

SUTHERLAND LOGISTICS LIMITED

(company number 06231884)
Claimant

- and -

VANTAGE FREIGHT SOLUTIONS LIMITED

(company number 07744120)
Defendant

PARTICULARS OF CLAIM

The Parties

1. The Claimant, Sutherland Logistics Limited ("Sutherland"), is a company incorporated in England and Wales whose registered office is at Brunel Distribution Park, Unit 4, Daventry, Northamptonshire NN11 8QZ. At all material times Sutherland carried on business as a provider of contract logistics, dedicated warehousing and road distribution services.

2. The Defendant, Vantage Freight Solutions Limited ("Vantage"), is a company incorporated in England and Wales whose registered office is at Meridian House, 88 Eastgate, Leeds LS2 7AB. At all material times Vantage carried on business as a freight forwarder and supply-chain intermediary, contracting with manufacturers and retailers for the storage and onward distribution of goods.

The Agreement

3. By a written Logistics Services Agreement dated 12 January 2023 (the "Agreement"), Sutherland agreed to provide to Vantage dedicated warehousing capacity and distribution services from Sutherland's Daventry facility, and Vantage agreed to pay the charges set out in the Agreement.

4. The Agreement was made for an initial fixed term of three years commencing on 12 January 2023 and expiring on 11 January 2026 (the "Initial Term"), and thereafter continued automatically for successive 12-month periods unless terminated on not less than six months' written notice.

5. The express terms of the Agreement on which Sutherland relies include the following:

(a) by clause 3.1, Vantage committed to a guaranteed minimum monthly throughput of 4,200 pallet-movements, for which Sutherland would dedicate warehousing capacity of not less than 9,000 pallet spaces;

(b) by clause 7.1, Vantage agreed to pay Sutherland's charges within 30 days of the date of each monthly invoice;

(c) by clause 7.4, Vantage agreed to pay a guaranteed minimum monthly charge of £68,500 irrespective of actual throughput, together with activity-based charges for movements in excess of the guaranteed minimum;

(d) by clause 13.1, neither party was entitled to terminate the Agreement during the Initial Term save for material breach not remedied within 30 days of written notice, or on the insolvency of the other party;

(e) by clause 18.2, the Agreement was governed by the law of England and Wales and the parties submitted to the exclusive jurisdiction of the courts of England and Wales.

Performance by Sutherland

6. From the commencement of the Agreement until its purported termination by Vantage, Sutherland duly performed its obligations under the Agreement. It dedicated the contracted warehousing capacity, recruited and retained dedicated warehouse and transport staff, and met or exceeded the service levels set out in Schedule 2 to the Agreement throughout.

7. In reliance on the Initial Term and the guaranteed minimum volumes, Sutherland incurred fixed costs including a 36-month lease of additional racking, the lease of four dedicated 18-tonne vehicles, and the employment of eleven dedicated operatives.

Vantage's Breaches

8. In breach of clause 7.1 of the Agreement, Vantage failed to pay Sutherland's invoices for the months of February, March and April 2025 within 30 days of invoice or at all. The invoices, which remain wholly unpaid, are:

Invoice no.	Invoice date	Due date	Amount (£)
SL-2025-0188	28 Feb 2025	30 Mar 2025	162,416.67
SL-2025-0241	31 Mar 2025	30 Apr 2025	161,920.00
SL-2025-0297	30 Apr 2025	30 May 2025	162,913.33
Total			**487,250.00**

9. By a letter dated 9 May 2025, Vantage purported to terminate the Agreement with immediate effect, asserting (wrongly) that it was entitled to terminate "for convenience" on 30 days' notice. Vantage thereafter ceased to tender any goods to Sutherland and refused to pay any further charges.

10. The purported termination was a repudiatory breach of the Agreement. Vantage was not entitled to terminate the Agreement during the Initial Term otherwise than in accordance with clause 13.1, and no ground under clause 13.1 existed. Sutherland was not in material breach of the Agreement, and Vantage gave no notice of any alleged breach.

11. By a letter dated 23 May 2025, Sutherland accepted Vantage's repudiatory breach as terminating the Agreement and reserved its rights to claim damages.

Loss and Damage

12. By reason of the matters set out above, Sutherland has suffered loss and damage.

13. Sutherland is entitled to payment of the unpaid invoices in the sum of £487,250.00, being charges accrued due before termination.

14. Further, by reason of Vantage's repudiatory breach, Sutherland has been deprived of the guaranteed minimum charges payable for the unexpired balance of the Initial Term, namely the period from 9 May 2025 to 11 January 2026 (8 months). Particulars of this head of loss are set out in the Schedule of Loss served with these Particulars of Claim, and may be summarised as follows:

    (a) guaranteed minimum charges for the unexpired term (8 months at £68,500): £548,000.00;

    (b) loss of activity-based margin above the guaranteed minimum: £119,200.00;

    (c) less avoided variable costs and sums in mitigation: (£55,200.00);

    (d) net loss of profit on the unexpired term: £612,000.00.

15. Sutherland has taken reasonable steps to mitigate its loss, including by redeploying two of the dedicated vehicles to other contracts and by securing replacement throughput from a third party from August 2025, the benefit of which is credited in the Schedule of Loss.

Interest

16. Sutherland claims interest on the unpaid invoices under the Late Payment of Commercial Debts (Interest) Act 1998, alternatively under section 35A of the Senior Courts Act 1981, at such rate and for such period as the Court thinks fit. Sutherland claims interest on its claim for damages under section 35A of the Senior Courts Act 1981 at such rate and for such period as the Court thinks fit.

AND THE CLAIMANT CLAIMS:

(i) the sum of £487,250.00 in respect of unpaid charges;

(ii) damages in the sum of £612,000.00 for wrongful termination of the Agreement;

(iii) interest pursuant to the Late Payment of Commercial Debts (Interest) Act 1998 and/or section 35A of the Senior Courts Act 1981;

(iv) costs;

(v) such further or other relief as the Court thinks fit.

HARRIET STANFORD
Eldon Chambers

Statement of Truth

The Claimant believes that the facts stated in these Particulars of Claim are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: …… Gordon Sutherland
Managing Director, for and on behalf of the Claimant
Dated: 9 October 2025

Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ - Solicitors for the Claimant (Ref: SAW/WC-00115)